

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201502641	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/26/2015 10:50 AM	Location of Incident: Jay Street Metro Tech - Mezzanine Level in the Subway	18 Mo. SOL 9/26/2016	Precinct: 84		
Date/Time CV Reported Wed, 04/08/2015 11:10 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/08/2015 11:10 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Antonio Rivera	08539	948531	TB DT30

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Tricia Peters	04219	937283	TB DT30

Officer(s)	Allegation	Investigator Recommendation
A . POM Antonio Rivera	Abuse: PO Antonio Rivera refused to provide his name to § 87(2)(b)	A . Unsubstantiated

Case Summary

On March 26, 2015 § 87(2)(b) § 87(2)(b), was transporting a prototype wheelchair she had designed. She was with her friend § 87(2)(b) § 87(2)(b) and § 87(2)(b) entered the mezzanine level of the Jay Street-Metrotech subway station in Brooklyn. § 87(2)(b) was aware that the required procedure for entering through an emergency exit gate was to swipe a Metrocard at a turnstile, turn the turnstile by hand, and then ask a station booth attendant to open the gate. However, § 87(2)(b) saw that no attendant was in the station booth at that entrance. An individual exited through the emergency exit gate, leaving it open. § 87(2)(b) pushed the wheelchair through the open gate without swiping her Metrocard, and § 87(2)(b) who also failed to swipe her Metrocard, followed. PO Antonio Rivera of Transit District 30 stopped § 87(2)(b) and § 87(2)(b) asked for the identification, and began to write out summonses for fare evasion. § 87(2)(b) requested PO Rivera's name, and PO Rivera allegedly said, "It's none of your business what my name is" (**Allegation A**). PO Rivera then handed § 87(2)(b) and § 87(2)(b) their summonses and let them go.

Mediation, Civil, and Criminal Histories

- During her April 17, 2015 interview, § 87(2)(b) declined to mediate this complaint § 87(2)(b) § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] (01. Board Review). On June 18, 2015 a request was sent to the Office of the Comptroller for any notice of claim filed in regards to this incident. As of the date of this report no response had yet been received.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (02. Board Review).
- PO Rivera has been a member of the NYPD for five years. He has been a subject in one previous CCRB complaint, § 87(2)(g) § 87(2)(g) (03. Board Review).

Findings and Recommendations

Allegation A—Abuse of Authority: PO Antonio Rivera refused to provide his name to

§ 87(2)(b)

It is undisputed among § 87(2)(b) (04. Board Review) and PO Rivera (05. Board Review) that § 87(2)(b) entered the emergency exit gate without swiping her Metrocard, that PO Rivera stopped § 87(2)(b) and that PO Rivera issued her a summons (06. Board Review). It is similarly undisputed that § 87(2)(b) asked PO Rivera for his name and that PO Rivera's partner, PO Tricia Peters, was not present when § 87(2)(b) asked or when PO Rivera responded.

§ 87(2)(b) testified that when she asked, "Could you please give me your name?" PO Rivera responded, "It's none of your business what my name is." § 87(2)(b) admitted that PO Rivera's name and tax ID number were legible on the summons issued to her.

PO Rivera testified that § 87(2)(b) asked for his name and shield number and that he responded, "PO Rivera, 08539." He did not say "It's none of your business what my name is" or otherwise refuse to provide the requested information. He added that he also printed his name and tax ID number neatly on the summons he issued to § 87(2)(b)

§ 87(2)(g) _____, it is
therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date